

13.	24PR0084	IN RE THE MATTER OF THE VISMAN FAMILY REVOCABLE TRUST
INSTRUCTION HEARING		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 24, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 10, 2026.

Petitioners, Brad D. Visman and Brad D. Visman Jr. ("Petitioners"), filed a Petition for Instructions on June 29, 2026. Petitioners allege that Michael Visman and Mark Visman ("Respondents") have demanded distributions from El Dorado Orchards Inc. ("EDO") and have threatened that the current management of will be changed if these distributions are not met, in violation of the Status Quo Order entered by the Court on December 3, 2025. Petitioners request the Court to order Michael Visman and Mark Visman to cease and desist from taking any steps to make management changes that contradict the Status Quo Order.

Petitioners also contend that EDO is unable to pay its ongoing operating expenses this summer without a Line of Credit or other financing. Michael Visman has requested Brad Visman make a loan from his personal funds; however, Michael and Mark are only willing to consent to a loan from Brad if it is in the sum of \$300,000 which would permit their requested distribution of \$150,0000. Petitioners request the Court permit Brad to make a short-term loan of up to \$150,000 to EDO without making any distributions to shareholders until profits are actually realized during the upcoming Apple Hill season.

Respondents do not oppose an order that permits Brad to make a personal loan to EDO, provided that:

1. Any personal loan made by Brad D. Visman to EDO shall not be used for, applied toward, or credited against shareholder distributions of any kind;
2. Any such loan shall be subject to terms approved by, or disclosed to, EDO's Board, and shall be subject to the existing Status Quo Order;
3. The loan terms, including interest rate, repayment schedule, and any security or priority claimed by the lender, shall be disclosed in writing to all parties and submitted to the Board for review prior to disbursement; and
4. Nothing in any such loan arrangement shall be construed to grant Brad D. Visman any additional control over, priority in, or interest in EDO or the Trust beyond what is currently established.

TENTATIVE RULING #13:

ABSENT OBJECTION THE PETITION IS GRANTED CONSISTENT WITH THE TERMS PROVIDED BY RESPONDENTS AS DETAILED IN THE TENTATIVE RULING. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

August 10, 2026
Dept. 9
Probate Tentative Rulings

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE